

2012 WL 4848473 (E.D.N.Y.) (Trial Pleading)
United States District Court, E.D. New York.

Akming ALBRITTON, Plaintiff,

v.

THE CITY OF NEW YORK, New York City Police Department, Po Argelis Rodriguez, Po **James Miles**, Pos
"John Doe" 1-4 (the name "John Doe" Being fictitious, as the true names are presently Unknown), Defendants.

No. CV 12-1420.
March 22, 2012.

Jury Trial Demanded

Complaint

Law Offices of Morris Hail, [Morris Shamuil](#), Esq., (MS-8604), Attorney for Plaintiff, 132 Nassau Street, Suite 1401, New York, New York 10038, (212) 608-1009, mshamuil@gmail.com.

Preliminary Statement

1. This is a civil rights action in which the plaintiff seeks relief for the defendants' violation of his rights secured by the Civil Rights Act of 1871, [42 U.S.C. Section 1983](#), by the United States Constitution, including its Fourth and Fourteenth Amendments, and by the laws and Constitution of the State of New York. The plaintiff seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of costs and attorneys' fees, and such other and further relief as this court deems equitable and just.

JURISDICTION

2. This action is brought pursuant to the Constitution of the United States, including its Fourth and Fourteenth Amendments, and pursuant to [42 U.S.C. § 1983](#) and [28 U.S.C. §§ 1331](#) and [1343\(a\)\(3\) and \(4\)](#), this being an action seeking redress for the violation of the plaintiff's constitutional and civil rights.

3. The plaintiff further invokes this court's supplemental jurisdiction, pursuant to [28 U.S.C. § 1367](#), over any and all state law claims and as against all parties that are so related to claims in this action within the original jurisdiction of this court that they form part of the same case or controversy.

JURY TRIAL DEMANDED

4. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

VENUE

5. Venue is proper for the United States District Court for the Eastern District of New York pursuant to [28 U.S.C. 1391 \(a\), \(b\) and \(c\)](#) as the events and omissions giving rise to the claim arose within the Eastern District of New York.

PARTIES

6. Plaintiff AKMING ALBRITTON is a resident of Brooklyn, New York.

7. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the Constitution and Laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible as its employer. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

8. Defendants, Police Officer ARGELIS RODRIGUEZ shield number 17025, PO **JAMES MILES** shield number 2655 and Police Officers “John Doe” 1-4, are and were at all times relevant herein duly appointed and acting law enforcement officers, servants, employees and agents of THE CITY OF NEW YORK and/or the New York City Police Department, a municipal agency of the defendant THE CITY OF NEW YORK, and stationed at the 79 Precinct. The aforementioned defendants are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of defendant THE CITY OF NEW YORK, were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

STATEMENT OF RELEVANT FACTS

9. On October 29, 2011, at approximately 2:50am plaintiff AKMING ALBRITTON was walking on Tompkins Avenue at Monroe Street, in Kings County when stopped by a number of police officers, including PO ARGELIS RODRIGUEZ. Mr. Albritton was severely beaten in his head, body, face and buttocks by Police Officer ARGELIS RODRIGUEZ shield number 17025, PO **JAMES MILES** shield number 2655 and Police Officers “John Doe” 1-4, allegedly looking for a handgun which they allege was thrown and not in the Plaintiff's possession.

10. At the above time and place, Plaintiff was ordered without any basis or jurisdiction, ordered to stop by the offending officers, forced to the ground, severely beaten in his head, body, face and buttocks. Plaintiff's hands were forced behind his back and immediately placed in handcuffs. The Plaintiff's pants and underpants were thereafter removed and Plaintiff was humiliatingly searched while handcuffed and on the ground in public view.

11. Plaintiff protested at the intrusive search, and asked the arresting officers why he was being subjected to such a search. Plaintiff was told to “shut up” and not ask any questions.

12. Plaintiff was arrested and charged with Criminal Possession of a Weapon on a Criminal Court Complaint sworn to by defendant PO ARGELIS RODRIGUEZ. All charges were dismissed on December 7, 2011.

13. Prior to his release on November 4, 2011 Mr. Albritton was taken to Woodhull Hospital and treated for his multiple facial and bodily injuries.

FIRST CLAIM

14. The Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

15. By their conduct and actions in falsely arresting, maliciously prosecuting, assaulting Plaintiff, defendants, Police Officer ARGELIS RODRIGUEZ shield number 17025, and PO **JAMES MILES** shield number 2655, and Police Officers “John Doe” 1-4, acting under color of law and without lawful justification, intentionally, maliciously, and with a deliberate indifference

to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

16. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

SECOND CLAIM

LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS

17. The Plaintiff incorporated by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

18. At all times material to this complaint, the Defendant THE CITY OF NEW YORK had *de facto* policies, practices customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

19. At all times material to this complaint, defendant THE CITY OF NEW YORK failed to properly train, screen, supervise, or discipline employees and police officers, and failed to inform the individual defendant supervisors of their need to train, screen, supervise or discipline defendants Police Officer ARGELIS RODRIGUEZ shield number 17025, and PO JAMES MILES shield number 2655 and Police Officers "John Doe" 1-4. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

20. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM

FALSE ARREST and FALSE IMPRISONMENT

21. The Plaintiff incorporated by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

22. By the actions described above, defendants falsely arrested and imprisoned Plaintiff, or cause him to be falsely arrested and imprisoned, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

23. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM

ASSAULT and BATTERY

24. The Plaintiff incorporated by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

25. By the actions described above, defendants did inflict assault and battery upon Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

26. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM

Violation of the 4th and 14th Amendments

27. The unprovoked and brutal attack upon the Plaintiff by police officers constituted an application of excessive force in violation of the 4th Amendment to the United States Constitution, as made applicable to the States through the 14th Amendment.

28. Moreover, this attack violated the 14th Amendment's substantive due process component.

29. All police officers complained of herein are alleged to have been acting under color of state law and at all times were acting intentionally and/or willfully.

30. The unlawful acts and omissions complained of herein were proximately caused by the City's deliberate indifference towards protecting members of the public from acts of excessive force by police officers who have been shown to have violated the constitution and laws of the United States.

FIFTH CLAIM

NEGLIGENCE

31. The Plaintiff incorporated by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

32. Defendants, jointly and severally, negligently caused injuries, emotional distress, and damage to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

33. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

SIXTH CLAIM

MALICIOUS PROSECUTION

34. The Plaintiff incorporated by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

35. By the actions described above, defendants maliciously prosecuted Plaintiff without any right to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

36. Defendant police officers commenced and continued a Criminal Court prosecution against the Plaintiff for Criminal Possession of a Weapon and Resisting Arrest, or otherwise failed to intercede to prevent the commencement or continuation of this frivolous proceeding.

37. The defendant police officers lacked probable cause to commence the foregoing prosecution with malice.

38. The Plaintiff received a favorable termination to the charges when they were dismissed on or about December 7, 2011.

39. The Plaintiff's freedom of movement was impinged in that he was incarcerated from October 29, 2011 until November 5, 2011.

40. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Pre- and post-judgment costs, interest and attorney's fees pursuant to [42 U.S.C. 1988](#);
- e. Such other and further relief as this Court may deem appropriate and equitable.

Dated: March 22, 2012

New York, New York

LAW OFFICES OF MORRIS HAIL

By:<<signature>>

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